NOMATTER NYARUGWE
versus
CHIMURENGA MINING SYNDICATE
and
NATHAN MANYUCHI
and
DOUGLAS MAHIYA
and
THE PROVINCIAL MINING DIRECTOR N.O

HIGH COURT OF Zimbabwe
MUZENDA J
MUTARE, 5 February 2026

REASONS FOR JUDGMENT

Mr *C Maunga (Jr)*, for the applicant
Mr *V Chinzamba*, for the 1st to 3rd respondents
Mr *P. M Garwe*, for the 4th to 6th respondents

MUZENDA J:

1. On 30 January 2026, after hearing parties in an urgent chamber application, I granted the following relief to the applicant;

   "The Urgent Application for Mandamus succeeds with costs against 1st to 3rd respondents.

   First and third respondents, their agents, proxies, employees and assignees be and are hereby ordered to restore peaceful and undisturbed possession of Reunya Fortune 25 to applicant forthwith."

   I undertook to provide full reasons for my extempore order, these are they:

2. The applicant approached this court on an urgent basis seeking a spoliation relief of mineral rights on a registered running block. Applicant owns a claim registered under T24267 situated in Lawley's Concession, Nyanga. He has been extracting gold from there since

October 1994. The certificate of registration is valid and was issued to him on 3 August 2023 and expires on 31 October 2026 and is open for renewal.

3. The applicant has been complying with all the legal requirements demanded by the regulatory authority and sells the bullion to Fidelity Gold Refinery, the latest delivery being 19 January 2026.
4. The first and third respondents are holders of a special grant issued by the Minister of Mines and Mining Development and according to the first to third respondents, the first respondent got the special grant in October 2025. However, before October 2025, first to third respondents visited applicant in June 2025 and informed applicant about the special grant. Sometime in August 2025, first respondent occupied applicant's mining shafts and commenced operations. To the applicant second and third respondents chased away applicant's employees which caused applicant to approach the Provincial Mining Director for Manicaland. Applicant also wrote a letter of complaint to the Zimbabwe Republic Police about the conduct of the first to third respondents. On 10 December 2025 fourth respondent directed applicant to erect visible beacons which applicant did. On 7 January 2026 Zimbabwe Republic Police, Environmental Management Agency, Fidelity Gold Refinery, Ministry of Mines and Mining Development officials paid a visit to the claim and warned parties to respect the beacons and boundaries.
5. According to the applicant, on 20 January 2026 first to third respondents invaded applicant's shafts, immediately applicant wrote to the Provincial Mining Director complaining about first to third respondents' conduct. On 27 January 2026 first to third respondents went to the applicant's claim and chased away the applicant's employees. On 28 October 2025, applicant further stated in his papers, first to third respondents loaded a 10 tonne UD truck with applicant's gold ore for milling. This last action by first to third respondents prompted applicant to come to court.
6. First to third respondents' counsel Mr *Chinzamba* in opposing the application contented that the applicant should not bring an application relating to a boundary dispute camouflaged in an interdict. He added that the fourth respondent was seized with the boundary dispute and applicant prematurely sought this court's intervention. He also

emphasised the need for a surveyor's report and insisted that first to third respondents were within their specified area of mining and accepted that applicant is their neighbour.

7. First to third respondents added that it is the area where new beacons were built that creates the dispute. First to third respondents also contented that they had never encroached into applicant's mining claim. In first to third respondents' view applicant was also claiming mining rights over a place where artisanal miners were removed. First to third respondents further added that applicant cannot therefore claim undisturbed possession in a boundary dispute and such needs the input of a Surveyor General. First to third respondents then prayed for the dismissal of the application.
8. In reply Mr *Maunga* for the applicant submitted that the application is for a spoliation order and not a boundary dispute as proposed by first to third respondents. All applicant prayed for is to be placed on the place he had always occupied since 1994. About the provincial Mining Director, applicant submitted that the boundary dispute will be resolved and will not affect this application for restoration. It was also clarified by the applicant that the 10-tonne truck took ore from applicant's shafts.

9. The Law

9.1. In the matter of *Shiriyekutanga Bus Service (Pvt) Ltd* v *Total Zimbabwe* 2008 (2) ZLR 37 at D-E MAKARAU JP (as she was then) captured the law as follows:

> "*In order to obtain a spoliation order, an applicant has to set up and prove that he was in peaceful and undisturbed possession of the property and that the respondent deprived him of such possession. The applicant does not have to show some reasonable or plausible claim to the property despoiled nor will the court enquire into the judicial nature of the possession claimed."*

10. Applying the law to the facts

11.1 It has not been disputed by the first to third respondents that applicant has been on the registered block since 1994 and had been renewing his operating licenses with the relevant Ministry. The Ministry, EMA and Police had been at his mine and have satisfied themselves that applicant is operating within the beacons registered by the applicant. It is the emergence of first respondent that attracted all stack-holders, that is if the special grant encroaches into the applicant's defined area. First respondent got the grant in October 2025 from the Ministry of Mines and Mining Development in Harare and

applicant is stating that first to third respondents are using that grant to chase away his employees. In other words, first to third respondents are literally dispossessing the applicant of his claims. Applicant has now settled on this claim for more than three decades, he cannot be mistaken of the confines of his beacons.

11.2 The ore which was ferried by the first respondent was extracted from applicant's shafts, this was not disputed by the first to third respondents. It is that ore which caused applicant to come to court.

11.3 The argument by the first to third respondents about the Surveyor-General's report is not persuasive. In my view the important information or detail are beacons approved by the Mining Ministry officials and reflected on the registration certificate issued to the applicant or registered owner. The Surveyor General's report is indeed important where it has been established that the cause of action arises from a boundary dispute. *In casu* applicant submitted that first respondent dispossessed him of his mining shafts and chased away his employees. Th cause of action is the invasion on applicant's mine by first to third respondents without a court order.

11.4 I am therefore satisfied that applicant has managed to prove that he was in peaceful and undisturbed possession of the mining shafts and claims which first to third respondents deprived him of such possession. He is the rightful registered operator and possessor of these mining rights defined within that area covered by the beacons.

The application therefore succeeds with costs.